

Cash

DV

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX**

-----X  
**DAWON SHORT,**

Plaintiff

- against -

**THE CITY OF NEW YORK,  
THE NEW YORK CITY POLICE DEPARTMENT  
and POLICE OFFICER DAVID MONAHAN,  
Shield# 028027**

Defendants.

Index No. \_\_\_\_\_

Purchased 5-9-12  
Plaintiff designates Bronx  
County as the place of trial

The basis of the venue is  
where the tort arose

**SUMMONS**

-----X  
**TO THE ABOVE NAMED DEFENDANTS:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY  
May 9, 2012

  
**THE LAW OFFICES OF ELLIOT S. KAY**  
Attorney for Plaintiff  
115 East 57<sup>th</sup> Street, 11<sup>th</sup> Floor  
New York, New York 10022  
(212) 939-7251

Defendant's Address:  
**CORPORATION COUNSEL OF THE  
CITY OF NEW YORK**  
100 Church Street  
New York, New York 10007

RECEIVED  
12 MAY . 9 AM 11:30  
COUNTY CLERK  
BRONX COUNTY

**SUPREME COURT OF THE STATE OF NEW YORK  
BRONX COUNTY**

**DAWON SHORT**

**Plaintiff,**

**Index No.  
Verified Complaint**

**- against -**

**THE CITY OF NEW YORK,  
THE NEW YORK CITY POLICE DEPARTMENT  
and POLICE OFFICER DAVID MONAHAN  
Shield # 028027**

**Defendants.**

Plaintiff DAWON SHORT, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

**PARTIES**

1. At all times hereinafter mentioned, Plaintiff DAWON SHORT was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.

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4. At all times hereinafter mentioned, defendant POLICE OFFICER DAVID MONAHAN, Shield # 017663 ("P.O. MONAHAN") was and is a police officer employed by Defendants.

#### BACKGROUND

5. On October 17, 2010, without just cause or provocation, P.O. MONAHAN, a police officer with defendant NEW YORK CITY POLICE DEPARTMENT intentionally and falsely accused Plaintiff of having committed the crime of Criminal Trespass in the Second Degree (P.L. § 140.15) and related charges.
6. On October 17, 2010 at approximately 2:30 a.m., in the vicinity of 1865 University Avenue, County of the Bronx, State of New York, Defendants, their agents, servants and/or employees, intentionally handcuffed Plaintiff and placed Plaintiff under arrest without just cause or provocation and with reckless and negligent disregard for the truth.
7. On or about October 17, 2010, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff was commenced.
8. Plaintiff was released from custody on or about October 18, 2010.
9. The criminal matter was terminated in favor of Plaintiff, in that all charges against him were dismissed, upon information and belief, on or about March 23, 2011.

#### PROCEDURAL POSTURE

10. On April 12, 2011, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the

Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

11. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.
12. A 50-H hearing has been held.
13. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
14. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

#### FIRST CAUSE OF ACTION

15. Paragraphs 1-14 are incorporated by reference as though fully set forth herein.
16. In arresting Plaintiff, the Defendants acted with malice.
17. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.
18. All charges were dismissed and sealed on or about March 23, 2011.

#### SECOND CAUSE OF ACTION

19. Paragraphs 1-18 are incorporated by reference as though fully set forth herein.
20. P.O. MONAHAN was at all times relevant, duly appointed and acting as a police officer with defendant NEW YORK CITY POLICE DEPARTMENT.
21. At all times mentioned herein, P.O. MONAHAN was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

22. Plaintiff is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
23. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
24. On October 17, 2010 at approximately 2:30 a.m., in the vicinity of 1865 University Avenue, County of the Bronx, State of New York, P.O. MONAHAN, while effectuating the seizure of Plaintiff, did search, seize and grab the person of Plaintiff without a court authorized arrest or search warrant. Defendants, including P.O. MONAHAN, did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested. Defendants did not possess probable cause to arrest Plaintiff.
25. The above action of the Defendants resulted in Plaintiff being deprived of the following rights under the United States Constitution:
- a. Freedom from assault to his person;
  - b. Freedom from battery to his person;
  - c. Freedom from illegal search and seizure;
  - d. Freedom from false arrest;
  - e. Freedom from the use of excessive force during the arrest process.
26. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those

rights under the fourth and fourteenth amendments of the United States Constitution.

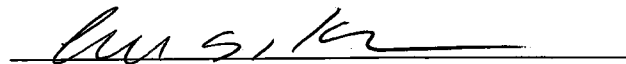
27. The direct and proximate result of the Defendants' acts is that Plaintiff has suffered injuries of a psychological nature. Plaintiff was forced to endure pain, humiliation and suffering, all to his detriment.

**WHEREFORE**, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY  
May 9, 2012

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY

A handwritten signature in dark ink, appearing to read "Elliot S. Kay", is written over a horizontal line.

**BY: ELLIOT S. KAY, ESQ.**

Attorney for Plaintiff  
115 East 57<sup>th</sup> Street, 11<sup>th</sup> Floor  
New York, NY 10022  
212-939-7251

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX**

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**DAWON SHORT,**

Plaintiff

-against-

**Index No.**

Purchased: 5-9-12

**CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT and POLICE OFFICER  
DAVID MONAHAN, Shield # 028027**

**Verification**

Defendants  
-----X

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY  
May 9, 2012

  
\_\_\_\_\_  
**ELLIOT S. KAY**